

TENTATIVE RULINGS

FOR: September 08, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. B Zoom

Join by Video

<https://www.zoomgov.com/j/1618700612?pwd=3bjaxoPtjuWe7B7JQWBQ8muwSuMiXC.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Meteor Growers, LLC v. Kimberton Wines, LLC et al

24CV001893

DEFENDANT WILLIAM DEEM’S MOTION FOR JUDGMENT ON THE PLEADINGS

TENTATIVE RULING: The motion is GRANTED. While Meteor is not granted leave to amend the Complaint, the instant ruling is made without prejudice to Meteor’s right to move the Court for leave to amend the operative complaint in the future.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at

JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant William Deem moves, pursuant to the California Code of Civil Procedure section 438(c)(1)(B)(i), for judgment on the pleadings as to the Complaint filed by Plaintiff Meteor Growers, LLC (Meteor).

In the Opposition, Meteor states, “Meteor does not oppose judgment on the pleadings as to the Complaint as presently pleaded against Deem individually. Meteor does, however, oppose Deem’s request that judgment be entered without leave to amend.” (*Id.* at 2:1-3.) However, Meteor further indicates that it does not seek to amend the Complaint to state a good cause of action against Mr. Deem *at this time*. Rather, Meteor indicates that, if certain events occur or become known, Meteor may, *in the future*, wish to amend to attempt to state a claim against Mr. Deem based on California’s producer’s lien statutes. (See *id.* at 2:4-13.)

Based on the foregoing, the Court finds good cause for granting the motion without leave to amend, but also without prejudice to Meteor’s right to subsequently move for leave to file an amended complaint in the future.